NOMAGUGU SITHULISILE JOHNSON

Versus

NATASHA FARAI MASHONGANYIKA

And

ASSISTANT MASTER OF THE HIGH COURT

And

REGISTRAR OF DEEDS, COMPANIES AND INTELLECTUAL PROPERTIES

And

SHERIFF OF THE HIGH COURT

IN THE HIGH COURT OF ZIMBABWE
KABASA J
BULAWAYO 16 FEBRUARY AND 13 APRIL 2026

Opposed application

T. S Manjengwa, for the applicant
No appearance for the 1st – 4th respondents

KABASA J: This is an application seeking the dismissal of the 1st respondent's action on the ground that it is frivolous and vexatious. The applicant seeks the following order:-

> "1. The application for the dismissal of 1st respondent's action under HC 219/24 be granted (sic)
>
> 2. The plaintiff's claim in HC 219/29 (sic) be dismissed with costs on a legal practitioner and client scale.
>
> 3. The 1st respondent shall bear costs of this application on a legal practitioner and client scale."

BACKGROUND

The background to this application is this:-

The 1st respondent (plaintiff) issued out summons against the applicant (1st defendant) seeking the following order: -

> "a. An order confirming the Agreement of Sale between the plaintiff and the late Nkosinothando Biba Ncube aka Nkosi Ncube dated 24th July 2015 in respect of certain piece of land situate in the district of Bulawayo being the remaining

extent of Stand 6 Bulawayo Township in extent 694 square meters more commonly known as No. 41 A Fort Street, Bulawayo.

b. An order compelling the 1st defendant to prepare and submit to the 2nd defendant the first and final liquidation and distribution account awarding the above mentioned property to the plaintiff.

c. An order compelling the 2nd defendant to confirm the first and final liquidation and distribution account to be submitted by the 1st defendant in terms of the above order.

d. An order compelling the 1st defendant to prepare all necessary papers and submit them to the 3rd defendant for the transfer of the property into the plaintiff's name within seven (7) days of granting of this order.

e. An order compelling the 3rd defendant to facilitate and register certain piece of land situate in the district of Bulawayo being the remaining extent of Stand 6 Bulawayo Township in extent 694 square meters more commonly known as No. 41 A Fort Street Bulawayo to the plaintiff's name in the place and stead of the 1st defendant.

f. In the event that 1st defendant fails to comply with this order, the 4th defendant be authorised to sign all necessary papers to pass transfer of the property to the plaintiff in the place and stead of the 1st defendant.

g. An order compelling the 1st defendant to pay from the estate a total amount of US$42 840 being half share of rental money collected from the property from the 1st of January 2017 to the date of issuance of summons.

h. An order of costs on a higher scale of legal practitioner-client scale against the 1st defendant."

The claim as elaborated in the declaration arose from these facts. The plaintiff was offered the property which 'Nkosi' was selling and after seeking advice from Morris Davies' Company Legal Practitioners who confirmed that the seller was the lawful owner of the property as per a court order granted under HC 2953/07, she bought the property for US$55 000. The plaintiff's mother Faith Charity Mashonganyika "Faith" represented her by virtue of a Special Power of Attorney. This was necessitated by the fact that the nature of the plaintiff's employment requires her to work outside Zimbabwe. A deposit of US$23 130 was paid and duly acknowledged in the Agreement of Sale. The balance of US$31 870 was paid through Faith (US$4 370), Florence US$15 000 and Linda US$12 500. The seller also retained US$510 which was the plaintiff's half share of rentals from the property. The parties had agreed to share rentals which were being paid by tenants occupying the property until the plaintiff took transfer.

The plaintiff complied with the terms but the seller did not transfer the property as agreed and only remitted rentals amounting to US$510 for 3 months i.e. from October-

December 2016. No rentals were remitted from January 2017. The seller subsequently died before transfer was effected and 1st defendant was appointed executrix dative.

In resisting the claim, the 1st defendant took preliminary points which I do not intend to exercise my mind on for purposes of this judgment. On the merits the 1st defendant contended that the US$23 130 deposit was never paid. The US$12 500 was also not paid and so there was repudiation of the Agreement of Sale.

After the seller's death the 1st defendant, in her capacity as executrix dative engaged the plaintiff's legal practitioners disputing the plaintiff's claim on account of the repudiation which the seller had accepted. A formal claim was never lodged against the estate but the 1st defendant rejected an informal claim. After the rejection of the informal claim, a s120 Authority in terms of the Administration of Estates Act [Chapter 6:01] was obtained from the 2nd defendant and the property was sold.

The plaintiff replicated to the plea and denied the averments by the 1st defendant. The full purchase price was paid, there was no repudiation. There was no communication of such cancellation by the seller. A claim was lodged immediately after the estate was registered in 2019 and there was assurance given by the 1st defendant's legal practitioners that the property would not be sold. If such happened it was fraudulently done as the plaintiff's claim was pending and known to both the 1st and 2nd defendant.

With the closure of pleadings, the plaintiff filed her pre-trial conference minute and summary of evidence in preparation for a pre-trial conference.

The present application was then made seeking the dismissal of the plaintiff's claim. The application is anchored on the following grounds:-

1. The claim is based on an agreement that is legally unenforceable as the late Nkosi held no title to the property and the order granted under HC 2953/07 had superannuated.

2. The 1st respondent (plaintiff) failed to plead or establish full payment of the purchase price.

3. No claim was lodged against the deceased estate in accordance with the Administration of Estates Act [Chapter 6:01].

The application was opposed. I referred to this application as an opposed application due to the fact that it was opposed when it was filed. However, the opposing affidavit was deposed to by counsel for the plaintiff who could not positively swear to the contents therein. A point *in limine* challenging the validity of the opposition was upheld and this was dealt with in a separate judgment. Consequently, the matter proceeded as unopposed.

However the fact that a matter is unopposed does not necessarily mean the court grants the order sought. The party still has to show that they have made a case for such an order and counsel was invited to make submissions in support of the application. This counsel did, taking the court through what he termed four broad grounds.

1ST DEFENDANT'S SUBMISSIONS

Counsel's argument was that the plaintiff's rights are derived from HC 2953/2007 which was granted on 11 February 2008. As at the date of signing of the Agreement of Sale, in 2015, the court order had superannuated. The seller had no title to the property.

Second, the plaintiff seeks specific performance yet the payments made were not in terms of the agreement and there was no variation clause and so performance outside the agreement cannot entitle one to claim specific performance.

Third, the payment made to 'Nkosi' is not supported by receipts. Such receipts were requested for when a claim was lodged against the estate and these were not availed. The plaintiff cannot therefore prove payment without receipts.

Fourth, plaintiff lodged a claim under the Administration of Estates Act and it was adjudicated on and dismissed. A s120 Authority was granted and the plaintiff was aware of that authority. The sale was authorised and the property subsequently sold. The plaintiff can therefore not seek specific performance when the property was sold to an innocent third party.

APPLICATION OF THE LAW TO THE FACTS

Has the 1st defendant made a case for the relief sought?

Rule 31 of the High Court rules, SI 202/2021 provides that:-

"31(1) Where a defendant has filed a plea, he or she may make a court application for the dismissal of the action on the ground that it is frivolous or vexatious and such application shall be supported by affidavit made by the defendant or a person who can swear positively to the facts or averments set out therein …"

What makes a claim frivolous and vexatious? What does the term mean?

In *Fisheries Development Corporation of SA Ltd* v *Jargensen & Anor*; *Fisheries Development Corporation of SA Ltd* v *AWJ Investment (Pty) & Ors* 1979 (3) SA 131 (W) the term was defined as follows:-

> "In its legal sense 'vexatious' means 'frivolous', improper, instituted without sufficient ground, to serve solely as an annoyance to the defendant… Vexatious proceedings would also no doubt include proceedings which, although properly instituted, are continued with the sole purpose of causing annoyance to the defendant, 'abuse' connotes a misuse, an improper use, a use *mala fide*, a use for an ulterior motive."

Herbstein and Van Winsen in the *Civil Practice of the High Courts of South Africa (5th Ed)* at p 718 thereof put it thus:-

> "The necessary complement to the summary judgment procedure is that for the summary dismissal of an action, a proceeding designed to afford a defendant a cheap and expeditious method of disposing of a vexatious or frivolous claim"

The comparison to summary judgment highlights the fact that a litigant who has instituted proceedings with absolutely nothing to stand on must not be allowed to prolong the matter as it would amount to abuse of the court process and tantamount to harassment of the defendant.

The authors go on, at p719 thereof, to refer to the case of *Ravden* v B*eeten* 1935 CPD 269 where SUTTON J quoted with approval, remarks by LORD HERSCHELL in *Dow Hager Lawrance* v *Lord Norreys* (1890) 15 AC 210 (HL) where the court had this to say:

> "It cannot be doubted that the court has an inherent jurisdiction to dismiss an action which is an abuse of the process of the court. It is a jurisdiction which ought to be very sparingly exercised and only in very exceptional cases. I do not think its exercise would be justified merely because the story told in the pleadings was highly improbable, and one which it was difficult to believe could be proved."

Turning to the facts *in casu,* counsel cited *Nzara & Ors* v *Kashumba NO & Ors* HH 157 – 16 for the proposition that a court order superannuates after 3 years and no one can derive rights over such. This judgement was appealed against under *Nzara & Ors* v *Kashumba NO & Ors* SC 18/18. Although the appeal succeeded, the success was not based solely on the issue of a superannuated order.

The issue of superannuation of the judgment was mentioned among other issues which rendered the transfer of the property to Dzingai unlawful. He had failed to pay the full purchase price and so failed to perform his obligations in terms of the contract.

In casu the plaintiff's claim is based on an Agreement of Sale which the plaintiff claims was duly complied with. The agreement is not disputed and a copy thereof was filed of record. The agreement acknowledged that the seller was yet to get title which once obtained was to be transferred in turn to the plaintiff. It equally acknowledged payment of the deposit.

The superannuation of the court order under HC 249/07 is the 1st defendant's defence to the plaintiff's claim which is yet to be tested at trial. So too the issue of lack of title on the part of 'Nkosi' who was yet to get title from the previous owner. The issue of a superannuated order ought to be ventilated as it could be a question of superannuation which would militate against execution and not necessarily the import of the rights conferred therein.

In *Nkala* v *Nkala & Anor* 2020 (1) ZLR 1224 (H) the court held that the parties' agreement was unenforceable as the properties in issue were subject to agreements with the Municipality prohibiting transfer or cession without the Municipality's written consent. The property also lacked title deeds and so were not yet transferable.

What is important to note is the fact that the above-referenced cases went to trial and the issues were properly ventilated allowing the court to make the findings it did. *In casu* the 1st defendant seeks to have the claim dismissed without further ado, a drastic step which should be resorted to sparingly. The defendant must accept that the pleadings contain the 'truth' of the plaintiff's claim. A matter can therefore be dismissed for being frivolous and vexatious if it can be said, even accepting that the pleadings contain the truth such that the plaintiff can prove that which they aver, even if that is proved the plaintiff would still have no case at law.

Where there are two versions to a matter, as is the case *in casu,* dismissal of a claim summarily ought not to be acceded to without a proper ventilation of the issues. A litigant ought not to have the door slammed shut in their face when they have articulated the bases of their claim, which claim would be sound, until evidence proves otherwise. The defendant and the court cannot anticipate that the plaintiff will not be able to prove her case.

Equally in *Grandwell Holdings (Private) Limited* v *ZMDC and 2 Ors* S5-20 the respondents failed to renew special mining grants which was its obligation on a joint venture

company for the mining of diamonds. The appellant's obligation was to provide funding, which it did and so had performed its part of the agreement. The prayer for specific performance was allowed as breach had been established.

In casu the plaintiff's claim is anchored on the fact that after due diligence and assurance by a legal practitioner that the seller could lawfully sell the property, an Agreement of Sale was concluded and the plaintiff complied with the obligations thereunder entitling her to claim specific performance. Such claim preceded the alleged sale of the property and there were assurances that the property would not be sold until the plaintiff's matter was adjudicated on.

Under such circumstances how can it be said the plaintiff's claim is a sheer waste of time and has been made purely for the purposes of harassing the 1st defendant? Such a narrative is not supported by the facts making a case for the matter to be adjudicated at trial and not summarily.

The purchase price payments are said to have been made contrary to the specific terms and there was no variation clause (*Matukutire* v *Munatsi & 2 Ors* 592/21). Whilst the courts do not re-write contracts for parties, the plaintiff's claim is premised on the fact that payments were made and there never was intimation of cancellation of the contract due to non-compliance by the plaintiff. The agreement could only be cancelled by written notice and so after paying the full purchase price, the plaintiff awaited transfer which never happened.

I am of the considered view that with such diametrically opposing averments, a dismissal of the action on the grounds of it being vexatious and frivolous is not sustainable. These arguments are what would be expected to be set out in the parties' submissions at the end of the trial and not to short-circuit the plaintiff's claim altogether.

As regards the lack of receipts. This is a matter of evidence. Surely a plaintiff cannot plead evidence. The plaintiff issued summons and in the declaration articulated the facts giving rise to the claim. This is as far as a plaintiff can go. To go further than that would be an affront to proper pleadings, as action proceedings are not determined on the papers as is the case with motion proceedings.

I therefore find no merit in this attack and therefore hold that it is not a ground justifying the relief sought.

I turn now to the issue regarding the claim under the Administration of Estates Act. The 1st defendant in her plea stated that no formal claim was lodged but an informal claim was adjudicated on. It appears there is some inconsistency on this point as the 1st defendant argues that a claim was made under the Administration of Estates Act and was dismissed.

The plaintiff on the other hand avers that a claim was lodged and she was awaiting transfer of the property into the estate for her to bring her action. The property was indeed so transferred but the 1st defendant did not subsequently transfer the property to the plaintiff. This suggests that the dismissal of the claim was not communicated. I must say it is rather puzzling for the 1st defendant to talk of no formal claim lodged in terms of the Act but in the same breath speak of the dismissal of the claim.

Ultimately this is a matter which begs for a proper ventilation of the issues at trial and not a dismissal of the action in a summary fashion.

I take heed of the warning that such applications ought to be sparingly granted. Closing the door to a litigant must be done where the case is hopeless and the litigant entertains absolutely no hope of sustaining their claim.

It is for the foregoing reasons that notwithstanding the fact that this turned out to be an unopposed application, I hold that a case has not been made for the dismissal of the plaintiff's action on the grounds that it is frivolous and vexatious.

COSTS

As regards costs, whilst the general rule is that costs follow the cause, given the issues I had to grapple with and costs being in the court's discretion, this is a matter where the appropriate order should be a non-award of costs to either party.

DISPOSITION

A case for the dismissal of the plaintiff's case on the grounds that it is frivolous and vexatious has not been made. The 1st defendant's defence to the claim ought to be tested through the trial process and so too the plaintiff's claim, which allows the leading of evidence to prove, *inter alia,* payment of the full purchase price and the breach by the seller to pass transfer.

That said, I make the following order:

The application for dismissal of the plaintiff's claim be and is hereby dismissed, with no order as to costs.

Wintertons, plaintiff's legal practitioners
Task Vhiki Attorneys, defendant's legal practitioners